

State vs Pawan And Ors on 28 February, 2025

TC 464/2025

STATE Vs. PAWAN AND Anr.
(Civil Lines Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10
CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

TC 464/2025

STATE Vs. PAWAN AND Anr.
(Civil Lines Traffic Circle)

1. Case No. of the case : 464/2025
2. The date of offence : 23.10.2024
3. The name of the accused : (1) Pawan
s/o Sh. Prithvi
(2) Rita
d/o Sh. Ajay Kumar
4. The offence complained : u/s 185, 194D,
3/181, 146/196, 115
CMVR/190(2),
5/180 of M.V. Act
5. The plea of the accused persons : Not guilty
6. Date of institution of the case : 07.01.2025
7. Date of reserving the order : 24.02.2025
8. The date of order : 28.02.2025
9. The final order : Accused Pawan is
convicted u/s 185,
194D, and 115
CMVR/190(2) M.V.
Act, and acquitted
u/s 3/181 and
146/196 M.V. Act.
Accused Rita is
convicted u/s 115
CMVR/190(2) M.V.
Act and acquitted
u/s 5/180 and
146/196 M.V. Act.

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JUDGMENT

1. Vide this judgment, this court shall dispose of traffic challans bearing no. DL21133241023210108 & DL21133241023210625 issued against the accused Pawan and Rita respectively on 23.10.2024 under Section 185, 194D, 3/181, 146/196, 115 CMVR/190(2), 5/180 of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act).

2. In brief, the case of the prosecution is that on the aforesaid date at about 09:00 p.m. at Tis Hazari Red Light, within jurisdiction of circle Civil Lines, while driving from Barf Khana to ISBT, accused Pawan was found plying a motorcycle bearing registration no. DL-5SBK-7201 without wearing a helmet, driving license, insurance, and pollution certificate. He was also found to be drunk driving having 259mg/100ml of alcohol. Accordingly, two separate challans were issued namely the present challan bearing no. DL21133241023210108 against accused Pawan who was allegedly driving the vehicle, and challan bearing no. DL21133241023210625 against accused Rita who is the owner of the vehicle. Upon issuance of the challans for the aforesaid offences, the vehicle of the accused was impounded and deposited in the pit of Civil Lines Traffic Circle. No application for superdari was moved by accused Rita who is the registered owner of the vehicle, therefore the impounded vehicle continued to remain in the pit throughout trial.

3. Both challans were taken up before this Court on 07.01.2025 upon appearance of accused. Cognizance was taken of the offences stated in the challan. As the said offences are bailable, the accused Pawan was admitted to bail on furnishing of STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) bail bonds, and accused Rita was admitted to bail on furnishing of personal bonds. As per Section 274 BNSS, separate notices were framed on the accused Pawan under Sections 185, 194D, 3/181, 146/196 of Motor Vehicles Act, 115 CMVR/190(2) of M. V. Act and against accused Rita under Sections 5/180, 146/196 of Motor Vehicles Act, 115 CMVR/190(2) of M. V. Act to which the accused persons pleaded not guilty and claimed trial.

Prosecution evidence

4. In support of its case, the prosecution examined two witnesses, namely, ASI Nathuram (PW-1) and HC Ravi (PW-2).

5. ASI Nathuram (PW-1) the challaning officer, and witness HC Ravi (PW-2) both deposed along the same lines. They stated that on 23.10.2024, they were posted at Civil Lines Traffic Circle. On that day, they were on duty at Red Light, Tis Hazari Court. At about 08:45 P.M., they found the accused Pawan driving one motorcycle bearing no. DL5SBK7201 without helmet, so they stopped his bike. They found the accused to be reeking of the smell of alcohol, therefore PW-1 checked him with an alcometer, and the result of the breath analysis test was 259mg/100ml. The accused disclosed his name as Pawan Kumar, but he could not produce his driving license. The said bike was found to be registered in the name of one woman. Accused Pawan also failed to produce the pollution certificate of the said bike. Thereafter, PW-1 seized the vehicle and deposited the same at the pit of Civil Lines circle. PW-1 further proved challans Ex. PW-1/A(colly), and PW-1 and PW-2 both identified their

respective signatures on the said challan. The accused was identified in court by both the witnesses.

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(Civil Lines Traffic Circle)

6. In his cross examination, PW-1 stated that he stopped the vehicle with the help of HC Ravi. During cross examination of PW-2, he stated that he had refreshed his memory before the present deposition. He stated that he stopped the vehicle of the accused with the help of ASI Nathuram. Both witnesses admitted that public persons were present at the spot, but they did not join the investigation by giving their personal reasons. Further, both witnesses denied the suggestion that PW-1 had made a different individual else blow into the alcometer and presented those readings in this challan. They further denied the suggestion that the accused had all the valid documents such as driving license and pollution certificate etc., and that they had deliberately not taken the abovesaid documents and falsely implicated the accused in the present matter.

Statement of accused

7. Vide order dated 19.02.2025 prosecution evidence was closed. Thereafter statement of the accused persons was recorded under Section 351 BNSS in which all incriminating evidence was put to them. The accused persons denied all the material produced against them and stated that they were being falsely implicated in the present case. Accused Pawan stated that he was wearing his helmet, however, it was taken away by the officials who issued the present challan. He also stated that he possesses a valid driving license bearing no. DL0120090026855 and had produced a physical copy of the same, as well as a digi-locker copy of the license at the time of issuance of the present challans, however the challaning official refused to accept the same. Accused Pawan further admitted that the vehicle did not have insurance and pollution certificate. He further stated that he was STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) not drunk, and had only consumed cough syrup. He also stated that he was made to sign on the challans when they were issued, however he denied that the challans on the judicial record bear his signatures.

8. In her examination under Section 351 BNSS accused Rita stated that motorcycle bearing registration no. DL-5SBK-7201 belongs to her. She further stated that Pawan possesses a valid driving license, however she stated that she does not know about the status of the insurance and pollution certificate of her vehicle. Both accused stated that they did not wish to lead any defence evidence.

Final arguments

9. During final arguments, Ld. APP for State argued that the accused failed to produce driving license, pollution certificate and insurance in respect of the vehicle. It was further argued that the offence of drunk driving and driving without helmet has been successfully established by the oral

evidence of both witnesses. Ld. APP for State further placed reliance on the alcometer slip filed as a part of the challan which contained the results of the breath analysis test conducted on the accused Pawan. Accordingly, it was submitted that the offences under Section 185, 194D, 3/181, 146/196, 115 CMVR/190(2), 5/180 of M.V. Act are proved beyond reasonable doubt.

10. Per contra Ld. Counsel for accused submitted that the accused persons are being falsely implicated in the present challan. It was argued that the accused Pawan has a valid driving license, and had produced the same at the time of issuance of the STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) present challans. It was further submitted that the accused had consumed cough syrup at the time of the incident, and he was not drunk driving. Further, it was argued that the accused Rita had no knowledge about the insurance and pollution certificate of the vehicle, since it is an old vehicle.

11. This court has heard the submissions of both sides, and considered the judicial record.

Analysis of Evidence

12. It is a settled principle of criminal jurisprudence, that the burden of proof lies on the prosecution to prove the case against the accused beyond reasonable doubt. This court shall consider the evidence on record to prove each of the offences alleged to have been committed by the accused.

a. Drunk Driving

13. To prove the offence under Section 185 MV Act beyond reasonable doubt, the prosecution must establish that firstly the accused driving or attempting to drive a motor vehicle, secondly while driving/attempting to drive the motor vehicle, the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood, thirdly such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test.

14. As per the oral testimonies of both witnesses, he was driving the vehicle without helmet, and when they stopped him, he was found to be reeking of the smell of alcohol. Both witnesses further deposed that the accused was examined by a STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) test conducted through a breath analyser, as per which the quantity of alcohol in his blood was found to be 259 mg per 100 ml blood. The result of the said examination is also on record as Ex. PW-1/A(colly).

15. The defence adopted by the accused is that he was not under the influence of alcohol, rather he had only consumed cough syrup, and that the readings reflected in the alcometer slip are the result of the examination of a different individual. However, there is no material to support this line of defence. Moreover. As per the alcometer slip, the date and time of conducting the test is 23.10.2024 at 20:59 hours, which corresponds with the time when the witnesses stated to have stopped the accused.

16. Therefore, there is no reason to doubt the veracity of the witnesses. Their oral testimonies have consistently supported the version of events as stated in the challan. Their testimony is further substantiated by the result of the breath analysis.

17. Accordingly, this court finds that the prosecution has successfully proved that the accused Pawan was drunk driving his vehicle with 259 mg alcohol per 100 ml blood.

b. Driving without helmet

18. With respect to the offence under Section 194D M.V. Act, both witnesses deposed in their examination in chief that when they saw the accused Pawan driving his vehicle at Tis Hazari Red Light he was not wearing his helmet. Both witnesses STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) categorically stated that they stopped the accused due to the said reason. Analysis of their testimonies reveals that after stopping the accused for this reason, the inquiries made from him revealed the commission of various other traffic violations which culminated in the issuance of the present challans. They remained unrebutted on this point even during their cross-examination.

19. In his examination under Section 351 BNSS, the accused Pawan stated that he was wearing his helmet however the same was taken away by the traffic officials. However, besides this bald assertion no other evidence has been produced by the accused to show he was wearing his helmet at the relevant point of time. Therefore, this court finds that the prosecution has successfully proved that the accused was driving the motorcycle in a public place without wearing protective headgear/helmet as defined in the Explanation to Section 129.

c. Driving without license

20. With respect to the offence under Section 3/181 M.V. Act, it was deposed by both witnesses that the accused did not possess a driving license. In his examination under Section 351 BNSS, the accused stated that he had a valid driving license bearing no. DL0120090026855 and that he had produced the same when he was stopped by the traffic officials.

21. It is a settled position of law that the purpose of the examination under Section 313 CrPC (now Section 351 BNSS) is to give an opportunity to the accused to explain the STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) circumstances appearing in evidence against him. In this context, the Hon'ble Supreme Court of India held as follows in Parminder Kuar @ P.P. Kaur @ Soni v. State of Punjab , Criminal Appeal No. 283 of 2011:

"Unlike the prosecution which needs to prove its case beyond reasonable doubt, the accused merely needs to create reasonable doubt or prove their alternate version by mere preponderance of probabilities. Thus, once a plausible version has been put

forth in defence at the Section 313 CrPC examination stage, then it is for the prosecution to negate such defence plea."

22. Applying the said principle to the present case, the accused raised a plausible defence during his examination by giving the details of his driving license. The status of driving license can be easily verified with the DL number. Therefore, upon production of the same, the burden shifted to the prosecution to negate his defence and prove that the said license was invalid as on the date of the incident. However, the prosecution failed to bring any material on record to contradict the claim of the accused. In these circumstances, this court finds that the accused has created a reasonable doubt in the case of the prosecution, and the benefit of this doubt must be extended to the accused. Accordingly, it is held that the prosecution has failed to prove beyond reasonable doubt that the accused did not possess a driving license.

d. Driving without pollution certificate

23. With regard to the offence under Rule 115 CMVR read with Section 190(2) M.V. Act, as per the oral evidence of both witnesses, upon inquiring from the accused Pawan, he could not STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) produce a valid pollution certificate in respect of the vehicle he was driving. When questioned about the same in his examination under Section 351 BNSS, accused Pawan admitted that the vehicle did not have a pollution certificate. Accused Rita, the owner of the vehicle stated that she does not know about the status of the pollution certificate of her vehicle. No record of the pollution certificate was produced by the accused persons during trial. Therefore, this court is of the view that the prosecution has proved beyond reasonable doubt that the accused was driving the vehicle without valid pollution certificate e. Driving uninsured vehicle

24. Coming to the offence under Section 146/196 M.V. Act, the prosecution was required to prove that the accused was using or had permitted another person to use a motor vehicle in a public place without a policy of insurance in compliance with Chapter XI of M.V. Act.

25. Consideration of the testimonies of PW-1 and PW-2 reveals that neither of them enquired about the status of insurance of the vehicle driven by the accused. No material has been adduced by the prosecution to prove that the vehicle driven by the accused was not covered by a policy of insurance.

26. It is pertinent to mention that while accused Rita stated in her examination under Section 351 BNSS that she is not aware of the status of insurance of her vehicle, accused Pawan admitted that there was no policy of insurance in respect of the vehicle. However, it is a settled principle of law that the evidentiary value STATE Vs. PAWAN AND Anr.

(Civil Lines Traffic Circle) of an admission made by the accused in his examination under Section 351 BNSS/313 CrPC merely has corroborative value, and cannot form the sole basis of conviction. In the absence of any material produced by the prosecution to this effect, this admission made by the accused cannot be relied upon to convict him. Therefore, this court finds that the prosecution has

not been able to prove that the vehicle was not covered by a policy of insurance.

Conclusion

27. From the above-mentioned discussion, this Court is of the view that the prosecution has successfully established the guilt of accused Pawan under Section 185, 194 D, 115 CMVR/190(2) M.V. Act, and accused Rita under Section 115 CMVR/190(2) M.V. Act. Accordingly, accused Pawan is convicted for the offences under Section 185, 194D, and 115 CMVR/190(2) M.V. Act, and acquitted for offences under Section 3/181 and 146/196 M.V. Act. Accused Rita stands convicted for the offence under Section 115 CMVR/190(2) M.V. Act and acquitted for the offences under Section 5/180 and 146/196 M.V. Act.

Announced in open court today i.e. 28.02.2025.

GOWRI REGHUNATH
REGHUNATH Date:
2025.02.28
14:55:16 +0530

(GOWRI REGHUNATH)
JMFC-10/Central/THC
28.02.2025

It is certified that this judgment contains 11 pages and each page bears my signatures.

GOWRI REGHUNATH
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(GOWRI REGHUNATH)
JMFC-10/Central/THC
28.02.2025